Law Offices of Joseph E. Gasperetti
2300 Fifth Avenue
New York, NY 10037
Tel: 917-796-5958
Fax: 212-862-000
E-mail: jgasperetti@litlawpc.com

July 24, 2026

Via ECF

The Honorable Justice Jennifer Schechter
Supreme Court of the State of New York
County of New York
60 Centre Street
New York, NY 10007

Re: *Dr. Peter Daszak, Ph.D., et al.; EHA, et al.; Index No. 16411/2025*

Your Honor:

I represent the Plaintiff Dr. Peter Daszak, Ph.D. in the above-referenced action. Plaintiff responds as follows to the defendants' so-called letter motion seeking a stay (Dkt. No. 60) (the "Defendants' Letter Motion"):

I.
Overview

The Defendants' Letter Motion assumes its own conclusion. That is bad and faulty logic. Presuming that the defendants' motion to dismiss will prevail, the defendants seek a stay of discovery. That is not a logical gambit. Defendants' so-called letter motion ignores the rules of the Commercial Division, the law they themselves cite, and seeks to stay discovery. Defendants pay no adherence to the rules of this Court, the rules of the Commercial Division, or the law which they mis-cite. Instead, defendants rely upon utterly inapposite authorities. The defendants' letter motion purpose is obvious. Defendants would conceal their own gross misconduct and avoid disclosure. The defendants terminated their own CEO, who was their eldest and most highly compensated employee and a member of EHA's Board and urged him to retire or leave these United States.

Moreover, defendants actually dissolved EHA after this action was commenced.

Plaintiff respectfully requests the belated letter motion for a stay be denied or decided only during and after oral argument on the Motion to dismiss, which is scheduled for July 28, 2026.

II.

The Letter Motion Ignores the Rules of this Court and the Very Case Law Upon which Defendants Rely

As Justice Cohen wrote in Youge *Venture Capital LLC v. Xueyuan Han*[1], New York County Supreme Court June 23, 2023 N.Y. Misc. LEXIS 43056

> "[I]t is the presumption of the Commercial Division that discovery continues during motion practice" (In Re Dentsply Sirona, Inc. v XXX, 2019 N.Y. Misc. LEXIS 4260, 2019 NY Slip Op 32297[U], 14 [Sup Ct, NY County 2019] [Scarpulla, J.]; Quadriad Realty Partners, LLC v Wilbee Corp., 2020 N.Y. Misc. LEXIS 58, 2020 NY Slip [*2] Op 30024[U], *12 [Sup Ct, NY County 2020]), and a stay is not typically granted simply because a defendant believes its motion to dismiss is a strong one (Hartman, David E. v Snellen, Eric, 2014 N.Y. Misc. LEXIS 6533, 2014 WL 7876752 at *1 [Sup Ct, NY County 2014] ["[D]efendants filing motions to dismiss presumably deem them meritorious" and "if the filing of a motion to dismiss were sufficient to impose a stay, there would be no Rule 11([g])"])

To be sure, in that case, the stay sought was in support of an argument that the Court lacked jurisdiction over the defendants according to the terms an arbitration agreement. No such argument is before this Court. Instead, in this case, as in Youge, defendants simply presume that their motion will succeed.

Recently, this Court has held that:

> Finally, with respect to defendants' motion for a stay of discovery, such motion is denied. New York County Commercial Division rule 11(g) places the imposition of a discovery stay, pursuant to CPLR 3214(b), within the sound discretion of the court (Matter of Grisi v Shainswit, 119 AD2d 418, 421, 507 N.Y.S.2d 155 [1st Dep't 1986] [courts have the inherent power, and indeed responsibility, so essential to the proper administration of justice, to control their calendars and to supervise the course of litigation before them]). Nothing in the record on defendants' motion before this court persuades it that the invocation of a discovery stay is warranted.

Youyi Chen v. 215 Chrystie Venture, LLC, 2023 N.Y. Misc. LEXIS 40, *5 (2023)

---

[1] Defendants' Letter Motion at 3.

III

Important Public Policy Concerns Warrant that Discovery Commence Immediately

This case originates at the intersection of Law, Politics and Science. Upon the outbreak of Covid 19 in the United States, certain members of the executive and legislative branches sought to cast Dr. Daszak and EHA, and others, as the inventors of a rabid, lethal and contagious disease which escaped from a laboratory in China and infested America. To no scientific avail, multiple hearings were conducted by the legislative branch, targeting Dr. Daszak and EHA, and ultimately those executive agencies barred Dr. Daszak and EHA from the receipt of government grants. For years, Dr. Daszak and EHA defended themselves vigorously and resisted debarrment. When it appeared clear that EHA would be barred, EHA's Board fired Dr. Daszak and suggested he ought to retire and leave the country[2]. Although mock science and partisan legislative and executive groups may tolerate and even justify that outcome[3], neither New York law nor Massachusetts law permit that outcome. Discovery should proceed forthwith so that this action may be quickly resolved.

What is more, as noted in Plaintiff's opposition to defendants' motion, none of the partisan political gibberish generated during the multiple political hearings are admissible on this motion under CPLR 4511. However, politicians and the press continue to tar and defame Dr. Daszak as the inventor of Covid 19. For example, on July 21, 2026, the *New York Post* ran an article suggesting that Dr. Daszak is a criminal. Exhibit A hereto. For that reason Dr. Daszak should be entitled to uncover the defendants' perfidy concerning his termination.

Respectfully submitted,

Joseph E. Gasperetti

cc: Jackson Lewis
Attorneys for Defendants

---

[2]. The transcript of the January 6, 2025 Zoom ambush meeting is annexed to the accompanying Daszak affidavit as Exhibit A. Notably, the defendants also proposed that Dr. Daszak either retire or leave the country. Daszak Affidavit sworn to July 24, 2026, ¶5.

[3] As noted in Plaintiff's opposition to defendants' motion, none of the partisan political gibberish generated during the multiple political hearings are admissible on this motion under CPLR 4511. However, politicians continue to tar and defame Dr. Daszak as the inventor of Covid 19. For example, On July 21, 2026, the New York Post ran an article suggesting that Dr. Daszak is a criminal. Exhibit A hereto. For that reason Dr. Daszak should be entitled to uncover the defendants' perfidy concerning his termination.